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Submitter Information

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General Comment

I am no law maker, but if I was to advise anyone on how to solve this (at least for cases of visual art) through legislation, I think the following set of rules would get us a fair bit of the way there:

1. Commercial AI models must maintain a public database of every individual image it has scraped, and who created them.

This might sound like hard work for the companies producing the AI models, but I'm pretty sure they have this data. How else would they be able to mimic a particular artist's style so well when prompted for it?

There is also the fact that we know Midjourney probably has a database like this already, due to the list of scraped artists that was leaked last year.

2. Every AI generated image should keep a record in its metadata, of which artists works and how big of a percentage, were used as references for the generated image.

Any commercial usage of the image must also require this metadata to stay intact. This will of course require some cooperation from actors like Corel and Adobe, to make sure that saving images after working on them with art-tools retains this meta-data, but this is still a viable endeavor to pursue.

3. Artists whose work and style is being used in a commercial image should receive a viable royalty payment.

Organizations similar to the ones we already have in the recording industry, should be responsible for collecting royalties from use of these images based on their metadata, and distributing these royalties to the artists.

This will of course also require cooperation from a bunch of commercial actors, and require artists to unionize. In addition, a working framework for the size of royalty payments must be put in place. But this will create new revenue streams for artists, and also jobs for people in the collection and distribution companies.